

**DEPARTMENT SEVEN  
JUDGE TIM P. KAM  
707-207-7307  
TENTATIVE RULINGS SCHEDULED FOR  
FRIDAY, AUGUST 7, 2026**

***The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.***

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

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**JPMORGAN CHASE BANK N.A. vs. BRANDON STEWART  
Case No. CL24-02763**

Motions to Compel Discovery

**TENTATIVE RULING**

The Parties are to appear.

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**IN THE MATTER OF DONAHUE DONAHUE DONAHUE LLC  
Case No. CL26-06563**

Petition by ANTHONY SHERWIN DONAHUE and DONAHUE DONAHUE DONAHUE LLC to Release Mechanic's Lien

**TENTATIVE RULING**

Civil Code §8480 authorizes the filing of a petition for an order releasing property from a recorded mechanic's lien claim, by "[t]he owner of property or the owner of any interest in property".

The petition filed in this limited jurisdiction case identifies two different petitioners, without any specificity as to which owns what ownership interest in the subject property.

A petition for release order can be filed as a new action, before and/or without any pending action to foreclose the mechanic's lien.

However, a petition noticed for hearing is considered to be a motion.

C.C.P. §1003 clarifies that “An application for an order is a motion”.

One requirement for any motion filed in Solano County is that the notice of motion advise of the court’s tentative ruling system. Solano County Local Rule 3.9(d).

No mention of the tentative ruling system appears in the notice of hearing filed for this petition.

A petition for release of a mechanic’s lien must also “allege” an array of detailed information, and be “verified”. Civil Code §8484.

A petition for a release order shall be verified and shall allege all of the following:

- (a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition.
- (b) The county in which the claim of lien is recorded.
- (c) The book and page or series number of the place in the official records where the claim of lien is recorded.
- (d) The legal description of the property subject to the claim of lien.
- (e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.
- (f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.
- (g) Whether an action to enforce the lien is pending.
- (h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.

Legal description of a real property typically refers to recorded maps and provides metes and bounds surveying descriptions of boundaries. See, e.g., Lee v. Fidelity National Title Ins. Co. (2010) 188 Cal.App.4<sup>th</sup> 583, 588 n.1.

The subject petition did not provide a metes and bounds legal description, nor was any verification provided.

Finally, for a mechanic's lien whose claim amount exceeds \$35,000, the verified petition must be filed as an unlimited jurisdiction case, not as a limited jurisdiction case. C.C.P. §86(a)(6) provides:

The following civil cases and proceedings are limited civil cases:

. . .

- (6) An action to enforce and foreclose, or a petition to release, a lien arising under Chapter 4 (commencing with Section 8400) of Title 2 of Part 6 of Division 4 of the Civil Code, or to enforce and foreclose an assessment lien on a common interest development as defined in Section 4100 or 6534 of the Civil Code, if the amount of the liens is thirty-five thousand dollars (\$35,000) or less. However, if an action to enforce the lien affects property that is also affected by a similar pending action that is not a limited civil case, or if the total amount of liens sought to be foreclosed against the same property aggregates an amount in excess of thirty-five thousand dollars (\$35,000), the action is not a limited civil case.

The mechanic's lien amount claimed in the recorded mechanic's lien was \$42,935.00. Thus, the court has no jurisdiction in this limited jurisdiction filing to grant any petition for release of this mechanic's lien.

For all of these reasons, this petition is denied, without prejudice to filing a proper and complete verified petition in an unlimited jurisdiction case.

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**DEBRA YANCY vs. 1527 SPRINGS ROAD, LLC; ET AL.**  
**Case No. CU25-08880**

Plaintiff's Motion to Compel Defendant's Further Responses to Special Interrogatories

**TENTATIVE RULING**

Plaintiff DEBRA YANCY moves to compel Defendant 1527 SPRINGS ROAD, LLC to further respond to two special interrogatories. Plaintiff's complaint in this matter alleges that she was an elder resident at Defendant's care home following a hip replacement surgery. Plaintiff alleges that Defendant's negligence resulted in Plaintiff suffering several falls and attendant severe injury. The two interrogatories at issue here seek the identities of all of the other residents at Defendant's care home during Plaintiff's tenure there and the identities of their responsible parties (meaning the persons who assumed financial responsibility for the residents or who were their representatives).

The court finds Plaintiff made adequate efforts to meet and confer before filing this motion. Plaintiff sent Defendant a detailed meet and confer letter explaining Plaintiff's position, to which Defendant responded with a firm statement that it would stand by its objections and refuse production.

Discoverable information is that reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) The court finds that the interrogatories at issue are not reasonably calculated to lead to the discovery of admissible evidence. Other residents of Defendant's care home generally are not reasonably likely to be material witnesses to the care Defendant provided to Plaintiff, much less their responsible parties. To Plaintiff's argument that the other residents may be witnesses to the general levels of staffing and training at Defendant's care home, such information is much more directly discovered by other means such as discovery of Defendant's training policies, staffing records, CDPH surveys and incident reports. Further, the staffing and training that other residents may have perceived as relevant to their situations and their particular care needs is not necessarily material to the staffing and training necessary to address Plaintiff's situation and meet her particular care needs.

Plaintiff's motion is denied.

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**CONSUELLA DEANNA WINDSOR vs. WILLIAM VENARD**  
**Case No. CU25-09087**

Motion by Plaintiff for Leave to File First Amended Complaint

**TENTATIVE RULING**

The unopposed motion is granted.

Plaintiff shall forthwith file and serve on all defendants the first amended complaint as proposed.

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**FERNANDO CRUZ CERDA; ET AL. vs. GENERAL MOTORS, LLC**  
**Case No. CU25-10827**

Motion to Strike Civil Penalties

**TENTATIVE RULING**

Defendant GENERAL MOTORS, LLC moves to strike the prayer for civil penalties from Plaintiffs FERNANDO CRUZ CERDA and FEDERICO G HURTADO's complaint asserting causes of action for (1) violation of Civil Code section 1793.2, subdivision (d),

(2) violation of subdivision (b) of the same, (3) violation of subdivision (a)(3) of the same, (4) breach of the implied warranty of merchantability pursuant to Civil Code section 1791.1, and (5) fraudulent inducement.

**Notice of Tentative Ruling.** Defendant's notice of motion does not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). Defendant is to observe local rules going forward.

**Motion to Strike.** Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;" therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Code of Civil Procedure section 871.24 states that at least thirty days prior to commencement of a civil action seeking civil penalties for violation of Civil Code section 1794 a consumer must notify the manufacturer in writing of the consumer's name, the relevant vehicle's vehicle identification number, and a brief history of the vehicle's repairs and problems. The consumer must also demand the manufacturer repurchase or replace the vehicle. Per section 871.24, subdivision (c) the consumer must also have possession of the vehicle at the time the notice is sent. Plaintiffs assert violation of Civil Code section 1794 as their fourth cause of action and seek civil penalties for such in their prayer (at subdivision "f"). However, Plaintiffs allege only that they demanded repurchase or replacement of the Vehicle by Defendant on October 31, 2025. (Complaint at ¶ 24.) They do not allege that they provided Defendant the vehicle's VIN or a summary of the Vehicle's repair history. Nor do they allege that they had possession of the vehicle at the time notice was sent. Most significantly they do not allege affording Defendant the proper thirty days as October 31, 2025 was only twenty-five days before the complaint was filed on November 25, 2025.

Plaintiffs did not obey Code of Civil Procedure section 871.24 and cannot seek civil penalties on their implied warranty claim.

**Leave to Amend.** Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) Policy favors liberal granting of leave to amend where there is no prejudice to the opposing party. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739.) The court finds that the identified defects in Plaintiff's complaint are amenable to cure and there is no prejudice to Defendant in granting leave to amend

**Conclusion.** Defendant's motion to strike is granted with leave to amend. Plaintiff must file any amended complaint within twenty days of the date of this hearing.

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**RUBY EVANS vs. WINDSOR VALLEJO CARE; ET AL.**  
**Case No. FCS055755**

Motion to Tax Costs

**TENTATIVE RULING**

On the Court's own motion, the hearing on Defendants' motion to tax costs is continued to August 28, 2026 at 9:00 a.m. in Department Seven.

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Department 7 is inviting you to a scheduled ZoomGov meeting.  
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

**Meeting ID: 161 155 4664**

**Passcode: 818575**

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